

		The stream of commerce cases Plaintiff relies upon are products liability cases that involve some sort of personal injury. (See <i>World-Wide Volkswagen Corp.</i>, <i>supra</i>, 444 U.S. 286 [car accident resulting in injury]; <i>J. McIntyre Machinery, Ltd.</i>, <i>supra</i>, 564 U.S. 873 [personal injury involving metal shearing machine]; <i>Vons Companies, Inc.</i> <i>supra</i>, 14 Cal.4th 434 [food safety causing E. coli outbreak]; <i>Ford Motor Company v. Montana Eighth Judicial District Court</i> (2021) 592 U.S. 351, [car accident resulting in death]; <i>L.W.</i>, <i>supra</i> 108 Cal.App.5th 95 [personal injury caused by defective vehicle].) That is not the case here. Plaintiff does not allege personal injury caused by the alleged defects in the subject vehicle. Instead, Plaintiff only alleges economic damages. The facts alleged in this action relate to the sale of and warranty for the subject vehicle, which Volkswagen AG does not issue, administer or control. (Piep Decl., ¶ 13.) <u>Fair Play and Substantial Justice</u> Since Plaintiff has failed to meet his burden under the second prong, Volkswagen AG does not need to establish that exercise of jurisdiction would be unreasonable. Accordingly, the Motion to Quash is GRANTED. Plaintiff's complaint is DISMISSED as to Specially Appearing Defendant Volkswagen AG.
14.	U.S. BANK NATIONAL ASSOCIATION VS. HUSSAIN 2025-01522674	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION The Motion for Summary Judgment/Adjudication by Plaintiff U.S. Bank National Association is GRANTED. Plaintiff moves for summary judgment or adjudication in its favor and against Defendants Khalid Hussain and Soleil Enterprises, Inc. a.k.a. Soleil Enterprises on the Complaint, which alleges breach of a credit card agreement with an outstanding balance of \$45,645.16. <u>Legal Standard:</u> The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) Code of Civil Procedure section 437c(c) states, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made

		and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” <u>Application:</u> Plaintiff’s Undisputed Facts show that Plaintiff and Defendants entered a written credit card agreement and Defendants ceased making payments on 7/24/24, leaving \$45,645.16 due and owing. (Facts 1-12.) Plaintiff has complied with its duties under the agreement. (Fact 13.) Therefore, Plaintiff has met its initial burden as to its claim for breach of contract. Defendants have not filed an opposition to the motion as of 8/13/26. Therefore, the motion is granted.
15.	JENKINS VS. GREENSKY 2021-01229679	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendants GreenSky, LLC and Synovus Bank’s unopposed motion for an order granting summary judgment, or in the alternative, summary adjudication, is GRANTED. <u>Plaintiff’s Allegations</u> Plaintiff contracted with The House Next Door Remodeling and Construction (House Next Door) for home improvements. (FAC ¶ 11.) Plaintiff alleges House Next Door concealed they were not licensed contractors and negligently performed work that was defective and below industry standards. (FAC ¶¶ 15, 16.) Plaintiff further alleges House Next Door “utilized Plaintiff and his wife’s identifies” to fraudulently obtain a \$30,000 loan with GreenSky. (FAC ¶ 34.) Plaintiff alleges the loan was not executed by Plaintiff or his wife and that a lien was eventually placed on Plaintiff’s property. (FAC ¶ 34.) <u>Second Cause of Action for Fraud</u> “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [citations omitted].) The loan at issue in this matter was financed by Defendant Synovus Bank (Synovus) and serviced by Defendant GreenSky, LLC (GreenSky). (UMF No. 12.)